

Treatise on the Office of the Most Holy Inquisition — Part II: Tit. II § II; Tit. III nn. 42–47 and § XVI

Cesare Carena of Cremona, Consultor and Fiscal Advocate of the Holy Office — Bologna:
Giacomo Monti, 1668; printed pp. 65, 76, 78–79 (English translation)

A. Printed p. 65 — § II, *De casibus ... non parçitur*, n. 10: the four unforgivable cases, of which the third is the one founded on *Cum ex Apostolatus officio*

Context: Titulus Secundus (*De Hæreticis pœnitentibus*, running head “Titulus Secundus”), § II. The *Cum ex Apostolatus officio* citation belongs to **numbered item 10**, in the paragraph “Tertius casus est...” (“The third case is...”), which begins at the foot of the left column and is completed at the head of the right.

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§ TWO.

On the cases in which a penitent Heretic is not spared, even for the first time.

10. ALTHOUGH as a rule a penitent heretic is admitted to mercy for the first time, nevertheless in several cases he is in no way spared.

The first case is in one who celebrates Mass, and who administers the Sacrament of Penance when he is not a Priest; for such a one, even for a first lapse, is handed over to the secular Court, as I have proved in the proper title on those who celebrate, etc.

The second case is of heretics who deny the Trinity, the Divinity of Our Lord Jesus Christ, His Conception of the Holy Spirit, His death, that He might redeem us, and the Virginity of the Blessed Virgin Mary, as is had in the Constitution of Paul IV beginning *Cum quorundam hominum malitia*, which at Rome, on the 18th day of May 1597, was put into practice, when in the Church of Saint Mary above Minerva a certain penitent, who had fallen into the case of the said Constitution, was released to the secular arm, as *Campan. in diuers. iuris can. Rubr. 1. num. 47. in fin.* attests; & *de hac Bulla vide Scortiam in scelectas Rom. Pontific. Constit. Epit. 67.*

The third case is that of which in the Constitution of the same

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Paul IV beginning *Cum ex Apostolatus officio*, concerning any Magistrates whatsoever, and Lords both Ecclesiastical and Temporal, falling into schism, of which I have spoken in the title on schism.

The fourth case is in Witches, who by acts of Sorcery shall have killed any persons, as by the Constitution of Gregory XV, of which in the title on Sorcerers; which Bull is had printed after *part. 4. resol. moral. P. Dianæ.*

B. Printed p. 76 — § XII, *De pænis Schismatis*, nn. 42–47 complete

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§ TWELVE.

On the penalties of Schism.

42. THE first penalty of Schismatics is deprivation of Ecclesiastical power (speaking of the power of Jurisdiction, not of Order), *text. est in cap. didicimus 24. quæst. 1. Sanch. in summa lib. 2. cap. 36. num. 10. & Card. Tuschus pract. conclus. tom. 7. litera S. conclus. 55. num. 1. & sequ. Bonacin. de censuris in specie disputat. prima, de censuris Bullæ Cænæ quæst. 2. punct. 5. num. 8. Suarez de charitate disput. 12. sect. 2. numer. 3. qui allegant alios.*

43. But whether this penalty has place in a schismatic who has not been denounced, the Writers dispute; for

Azor. institut. moral. par. 1. lib. 8. cap. 20. quæsito 9. & Valentia tom. 3. disp. 3. q. 15. punct. 3. have judged that a Schismatic, even before he is denounced, lacks Ecclesiastical jurisdiction.

Toletus verò lib. 1. summ. cap. 13. nu. 2. & Sotus in 4. dist. 12. q. 1. art. 4. Leonard. Duardus ad Bullam Cænæ lib. 2. can. 1. q. 56. num. 13. vers. Quæ quidem, & Bonacina in Decalogum disp. 3. qu. 4. punct. vlt. §. 5. nu. 8. & loco supra allegato num. 9. have deemed the opposite more probable: for from the Council of Constance, whose Constitution *Tolet. & Sotus locis supra citatis* report, no one is to be shunned by force of the Ecclesiastical prohibition, unless he be a notorious striker of a Cleric, or have been denounced by name as guilty of a perpetrated offence to which deprivation of communion is attached.

44. The second penalty of Schismatics is the excommunication laid down in the 1st canon of the Bull Cænæ.

For whether by the ancient Law they were excommunicated is controverted among the Doctors, *ita Sanch. dicto can. 36. nu. 11. Duardus d. 56. nu. 6. Suar. de charitate disp. 12. sect. 2. nu. 1. Sanctarell. de hæresi cap. 43. nu. 8. & Farinac. de hæresi q. 184. nu. 37. & seq.* I have said that Schismatics are excommunicated with the excommunication of the Bull in the 1st Canon, against *Nauar. in Man. cap. 27. nu. 57.*, who places this excommunication in the 2nd Canon; but in truth

Nauar. swims against the torrent of the Doctors, and *Alter. de censur. tom. 1. lib. 5. disput. 2. cap. 9. in principio* has impugned him at length.

45. But this excommunication does not comprehend merely mental Schismatics, *Sanch. nu. 15. & Duard. nu. 17. nor the abettors, and d. of Schismatics, Sanch. nu. 16. & Duard. nu. 8. Bonacin. d. punct. 5. nu. 10. vers.* Obserua quarto, although these are bound by the excommunication of which [is treated] in the Bull of Paul IV beginning ***Cum ex Apostolatus officio***,

46. Schismatics are nevertheless bound by this censure of the Bull *Cænæ* † by the outward deed alone, although in them the intention of withdrawing themselves from obedience to the Pope be lacking, as *Sanch. num. 14. Suar. de censur. disput. 21. sect. 2. num. 13. Duardus num. 8.* have taught. From which the Doctors there infer that by the censure of the Bull

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there are bound those who in England exhibit signs of outward obedience toward the King, although in mind they believe him not to be the Vicar of Christ, *Bonacin. vbi supra versic. Obserua tertio, & Mar. Alter. de censur. tom. 1. disput. 2. lib. 5. c. 9. colum. 8. Filliuc. quæst. moral. tom. 1. tract. 16. cap. 1. numer. 48.* Father Pueroni, Abbot General of the Monks of Monte Oliveto, Lord, and my fellow-citizen, in his most erudite commentaries in *Bullam Cænæ, c. 1. n. 130.*

47. But whether under the excommunication of our Bull there are comprehended only those who are schismatics and heretics at once: or whether also schismatics of the first kind, not having schism joined with heresy.

Farinac. holds that only those Schismatics who have heresy joined with schism are comprehended, on the ground that these are schismatics properly so called, *ita quæst. 184. num. 59.*

But *Duardus dicta quæst. 59. n. 6. Sanch. & Suar. locis citatis* have manifestly taught that schismatics also, who do not have heresy joined with schism, are comprehended by the Bull *Cænæ*, because these too are strictly schismatics, as we have seen above; and schismatics of the second kind are already excommunicated by this same our Bull under the name of Heretics.

(n. 48, “The third penalty is the incapacity for obtaining benefices in the future...”, follows; not transcribed.)

C. Printed p. 78 — close of § XV (with the “conciuis meus” sentence) and § XVI *Quomodo se debeat gerere Confessarius cum Schismaticis* entire, nn. 60, 70–76

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(Left column, continuing § XV, on the confession of Apostasy. The “conciuis meus” sentence is the last clause of the second paragraph below.)

...cessarily to be explained in confession, as the same *Diana loco supra allegato resolut. 54.* held.

But those who follow the other opinion concerning the necessary explanation of these circumstances in confession — which we have judged the more probable — must hold that the circumstance of Apostasy must necessarily be confessed, since without doubt it notably aggravates the sin of Heresy, as in the particular case *Suarez de fide disp. 16. sect. 5. in fine. Sanch. in summ. lib. 2. cap. 7. num. 17. Valentia 2. 2. disput. 1. quæst. 11. punct. 1. & 10. punct. 5. qui alios allegant, quibus addi potest Layman. in summ. lib. 2. tract. 1. cap. 16. num. 3.* have held; and, after these things were written, there was seen the Most Reverend Lord, and **my fellow-citizen** Pueroni, Abbot General of the Monks of Monte Oliveto, in *Bullam Cænæ cap. 1. num. 36.*

The confessor is nevertheless to observe that if the Apostasy be only outward, and the penitent has in his understanding held rightly concerning the Catholic faith, he can be absolved by any confessor whatsoever, nor does he in any way incur the excommunication of the Bull Cænæ; thus *Valer. de differentijs vtriusque fori, verbo Hæresis, differentia 1. num. 1.* and others cited by me above *tit. 2. §. fin. num. 49. quamvis Diana resolut. moral. par. 3. tract. 4. resolut. 143.*; and although at the end of that resolution he says that this opinion displeases many, nevertheless it is the plain truth, and the Most Reverend Pueroni, often cited by me above, followed the same opinion as most true in his commentaries on the Bull Cænæ Domini, *cap. 4. num. 37.*

68. The confessor shall further set before the Apostate his unhappy state and end, out of Divine Scripture, Proverbs chapter 6: *A man that is an apostate, an unprofitable man, walketh with a perverse mouth, He winketh with the eyes, presseth with the foot, speaketh with the finger, With a wicked heart he deviseth evil, and at all times he soweth discord. To such a one his destruction shall presently come, and he shall suddenly be destroyed, and shall no longer have any remedy.* Which passage Cardinal Baronius, tom. 4. Annal., about the year of the Lord 363, and Spondan. in Epit. ibidem num. 16, applied to Julian the Apostate, and to all other Apostates. And on the unhappy death of Apostates, see the same *Spondan. ad Annum Domini 362. numer. 24.* Finally . as I have advised above, all the things which we have said are to be observed with regard to Heretics, the confessor will observe with regard to Apostates.

§ SIXTEEN.

How the Confessor is to conduct himself with Schismatics.

60. SINCE, as we have seen above at § 10, Schism is sometimes joined with heresy and sometimes not, when it is joined with heresy, then the confessor will conduct himself toward the schismatic in that manner in which we have said above that he must conduct himself toward the heretic.

But if the Schism be disjoined from heresy, then

70. In the first place the confessor is to observe the difference which obtains between the excommunication laid down for heresy and that laid down for schism: because the former requires conjunctively an error in the understanding, and the outward manifestation of it; the latter, however, requires only the outward deed, which suffices for incurring the censure, even if there be not present the intention of withdrawing oneself from obedience to the Pontiff, as he is head of the Church; thus *Suar. Sanch. Duard.* and others cited by *Bonacin. de censur. in specie tom. 3. disput. 1. q. 2. punct. 5. num. 10. vers.* Secundo patet: to whom may be added *Scortia in selectas Rom. Pontificum Constit. Epit. 166. theorem. 410. vers.* Quod spectat ad tertiam partem, there, Hinc collige Catholicos, with the others of whom above.

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71. Secondly, the abettors, defenders and harbourers of Schismatics incur only the censure laid down by the Constitution of Paul IV, of which above at number 41; which, since it is reserved to no one, can be removed by any confessor whatsoever, *Duard. in Bullam Cænæ lib. 2. can. 1. quæst. 56. num. 18. vers.* Benè verum est, *Bonacin. vbi supra, vers.* Obserua quarto, *Abb. Pueronus ad Bullam Cænæ Domini cap. 1. num. 246.*

72. Thirdly, when there exist two Supreme Pontiffs at the same time, if the canonical election of the one is established and the non-canonical election of the other, the confessor must advise the penitent, and command, that he acknowledge for true Pontiff the one who is established to have been canonically elected: But if the matter is doubtful, and the canonical election of neither is established, then the confessor must advise the penitents to hold themselves as members of the one Catholic Church, and to refer themselves to its Supreme head, Christ the Lord, and to acknowledge those Pontiffs **not as certain, but as doubtful**, and to show themselves ready to acknowledge for true Pontiff the one whom the General Council shall have approved as such, *Mar. Alterius de censuris lib. 5. disput. 2. cap. 9. vers.* Si postules, and *vers.* Addo etiam, where he adds that in such a doubt anyone may deny that either one of them is the true Pontiff, without danger of mortal sin or of excommunication, *Nald. in summ. verbo, Bulla Cænæ Domini, num. 16. qui alios allegat, Abb. Pueronus ad Bullam Cænæ cap. 1. num. 243. & sequent.*

73. Fourthly, the confessor must observe that one who should say that it is not of faith that this-in-number Pope — for example, Our Most Holy Lord INNOCENT X — is the true Pontiff, is not to be held for a Schismatic, but for a true HERETIC, as *Suar. videndus de fide disput. 10. sect. 5. per totam* has proved most amply, where he has confirmed this by many Councils, by Constitutions of the Supreme Pontiffs, and by the authorities of the Fathers. For just as it is of faith that this-in-number is the visible Church of God, so also must it be of faith that her visible head — to whom she is subject and is bound to obey — is **this visible man, held for Supreme Pontiff by the common consensus of the Church**; and if this is of faith, then one

asserting the contrary is a heretic; well *Turrian. videndus in suis selectis disput. part. 1. disp. 35. dub. 5.*, where [he notes] that **this is now more certain than it was before the times of Clement VIII**; at length Bonacin., seen after these things were written, *de censuris in specie tom. 3. eius operum disp. 1. quæst. 2. punct. 1. n. 9. & Pater Pueronus nouissimè visus ad Bullam Cænæ cap. 1. num. 142.*

74. Fifthly, toward the Schismatic the confessor will conduct himself proportionally in that manner in which *supra tit. 2.* we have taught that he must conduct himself with the heretic.

For, the censure having been removed from the schismatic by the Bishop and the Inquisitor, and the schism and the suspicion of heresy having been abjured in the external forum, he will exact the same things from the same man in the internal forum: And he must admonish him of the gravity of schism, which the confessor can gather:

Both from this, that schism cuts and divides the Church of God — figured in the seamless Tunic of Our Lord, and in the one Ark of Noah, and of which in Canticles 6 it is said: *One is my dove, my perfect one is but one, she is the only one of her mother, the elect of her that bore her*: as is noted in the Extravagant *Vnam Sanctam, de maior. & obedientia* — whence Bede in the Martyrology, on the 25th day of November, relates that Christ appeared to Blessed Peter, Bishop of Alexandria, with His garment rent through, and said to him: *that Arius had done this, because he had torn the Church.*

75. And from the divine vengeance sent upon schismatics, whence Numbers 16: at the command of Almighty God, the earth swallowed up alive Dathan and Abiron.

76. And finally from the golden admonition delivered to his Disciples

D. Printed p. 79 — completion of n. 76 and close of § XVI

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by Blessed Antony the Great as he was dying, reported in these words by Saint Athanasius in his life: *The poisons of Schismatics, He says, and of Heretics, avoid, and pursue my hatred toward them, because they are the enemies of Christ; you yourselves know that never had I any discourse with them, not even a peaceable one, on account of their depraved will and their obstinate war against Christ.*

In like manner let the confessor admonish the schismatic of the penalties which he has contracted on account of schism, since he is bound to observe them entirely in the forum of conscience also; and let him enjoin upon him salutary penances, suited both to the offence and to the quality of the person, at his own prudent discretion.

(The rule and the heading TITVLVS QVARTVS. / De Fautoribus Hæreticorum follow; not transcribed.)

Sic-notes and typographic anomalies